# SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

*NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.*

1. REQUISITION NUMBER: PGM-2026-0021



2. CONTRACT NUMBER:

3. AWARD/EFFECTIVE DATE:

4. ORDER NUMBER:

5. SOLICITATION NUMBER: 1131PL26Q0001

6. SOLICITATION ISSUE DATE:

7. FOR SOLICITATION INFORMATION CALL:

a. NAME: Pringle, Vallerie J

b. TELEPHONE NUMBER *(No collect calls)*:

8. OFFER DUE DATE/ LOCAL TIME: 04/01/2026 01:00

9. ISSUED BY — CODE 1131PL

TDA Location
US Trade and Development Agency, PO Box 12268
Arlington, VA, 22219, US

10. THIS ACQUISITION IS
- [X] UNRESTRICTED OR
- [ ] SET ASIDE: 0 % FOR:
- [ ] SMALL BUSINESS
- [ ] HUBZONE SMALL BUSINESS
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB)
- [ ] ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- [ ] 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS):

SIZE STANDARD:

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED
- [X] SEE SCHEDULE

12. DISCOUNT TERMS:

13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) [ ]

13b. RATING:

14. METHOD OF SOLICITATION
- [ ] REQUEST FOR QUOTE (RFQ)
- [ ] INVITATION FOR BID (IFB)
- [X] REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE:

See Schedule

16. ADMINISTERED BY — CODE 1131PL

Same As Issuing Office

17a. CONTRACTOR/ OFFEROR — CODE: FACILITY CODE:

TELEPHONE NUMBER:

18a. PAYMENT WILL BE MADE BY — CODE:

17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER [ ]

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

| 19. ITEM NUMBER | 20. SCHEDULE OF SUPPLIES/SERVICES | 21. QUANTITY | 22. UNIT | 23. UNIT PRICE | 24. AMOUNT |
|---|---|---|---|---|---|
| | See Schedule<br>*(Use Reverse and/or Attach Additional Sheets as Necessary)* | | | | |

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

- [X] 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA [X] ARE [ ] ARE NOT ATTACHED
- [ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

[ ] 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER *(Type or print)*

31c. DATE SIGNED

| 19. ITEM NUMBER | 20. SCHEDULE OF SUPPLIES/SERVICES | 21. QUANTITY | 22. UNIT | 23. UNIT PRICE | 24. AMOUNT |
|---|---|---|---|---|---|
| | PAYMENT SCHEDULE<br>Latin America and the Caribbean: Digital Infrastructure Project Scoping Services | | | | |
| 0001 | Initial Project Assessments Reports (Up-to-25) | 25 | EA | | |
| 0002 | Project Report (Up-to-15) | 15 | EA | | |
| 0003 | Final Report | 1 | EA | | |
| 0004 | Cost Reimbursement- Travel in Accordance with Fe4deral Regulations (Not-To-Exceed) | 1 | LOT | | |

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

| 32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE | 32c. DATE | 32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE |
|---|---|---|
| | | |

| 32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE | 32f. TELPHONE NUMBER OF AUTHORZED GOVERNMENT REPRESENTATIVE |
|---|---|
| | 32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE |

| 33. SHIP NUMBER | 34. VOUCHER NUMBER | 35. AMOUNT VERIFIED CORRECT FOR | 36. PAYMENT | 37. CHECK NUMBER |
|---|---|---|---|---|
| ☐ PARTIAL ☐ FINAL | | | ☐ COMPLETE ☐ PARTIAL ☐ FINAL | |

| STOCK RECORD (S/R) | | 40. PAID BY |
|---|---|---|
| 38. S/R ACCOUNT NUMBER | 39. S/R VOUCHER NUMBER | |

| 41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT | | 42a. RECEIVED BY *(Print)* | |
|---|---|---|---|
| 41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER | 41c. DATE | 42b. RECEIVED AT *(Location)* | |
| | | 42c. DATE RECEIVED *(MM/DD/YYYY)* | 42d. TOTAL CONTAINERS |

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## Section II: Continuation of SF1449

| Item Number | Base Item Number | Supplies/Services | Quantity | Unit |
|---|---|---|---|---|
| 0001 | | Initial Project Assessment (up to 25) | 25 | EA |
| Contract Type:Firm Fixed Price | | | | |
| | | | Unit Price | |
| | | | Extended Price | |
| | | | | |
| | Description: | | | |
| | | | | |
| Purchase Requisitions | | | PGM-2026-0021 | |
| | | | | |

IDC Type: Not Applicable

| Delivery Date | Delivery Address |
|---|---|
| 4/1/26 | TDA Location<br>US Trade and Development Agency<br>PO Box 12268<br>Arlington VA<br>US 22219 |

| Item Number | Base Item Number | Supplies/Services | Quantity | Unit |
|---|---|---|---|---|
| 0002 | | Project Report (up to 15) | 15 | |
| Contract Type:Firm Fixed Price | | | | |
| | | | Unit Price | |
| | | | Extended Price | |
| | | | | |
| | Description: | | | |
| | | | | |
| Purchase Requisitions | | | | |
| | | | | |

IDC Type: Not Applicable

| Period Of Performance Start Date | Period Of Performance End Date | Period Of Performance Address |
|---|---|---|
| | | TDA Location<br>US Trade and Development Agency<br>PO Box 12268<br>Arlington VA<br>US 22219 |

| Item Number | Base Item Number | Supplies/Services | Quantity | Unit |
|---|---|---|---|---|
| 0003 | | Final Report | 1 | EA |

| | | | |
|---|---|---|---|
| Contract Type:Firm Fixed Price | | | |
| | | Unit Price | |
| | | Extended Price | |
| | | | |
| | Description: | | |
| | | | |
| Purchase Requisitions | | | |
| | | | |

IDC Type: Not Applicable

| Period Of Performance Start Date | Period Of Performance End Date | Period Of Performance Address |
|---|---|---|
| | | TDA Location<br>US Trade and Development Agency<br>PO Box 12268<br>Arlington VA<br>US 22219 |

| Item Number | Base Item Number | Supplies/Services | Quantity | Unit |
|---|---|---|---|---|
| 0004 | | Cost Reimbursement - Travel in Accordance with Federal Travel REgulations ( Not-To-Exceed) | 1 | LT |
| Contract Type:Firm Fixed Price | | | | |
| | | | Unit Price | |
| | | | Extended Price | |
| | | | | |
| | Description: | | | |
| | | | | |
| Purchase Requisitions | | | | |
| | | | | |

IDC Type: Not Applicable

| Period Of Performance Start Date | Period Of Performance End Date | Period Of Performance Address |
|---|---|---|
| | | TDA Location<br>US Trade and Development Agency<br>PO Box 12268<br>Arlington VA<br>US 22219 |

## Section III: Contract Clauses

Clauses incorporated by reference

| Article Number | Reference Text |
|---|---|
| 52.204-2 | 52.204-2 Security Requirements (MAR 2021) |
| 52.204-25 | 52.204-25 Prohibition on Contracting for Certain Telecommunications and Video Surveillance |

| | |
|---|---|
| | Services or Equipment (Nov 2021) |
| 52.209-10 | 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015) |
| 52.212-4 | 52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services (Nov 2023) |
| 52.232-39 | 52.232-39 Unenforceability of Unauthorized Obligations (JUN 2013) |
| 52.233-4 | 52.233-4 Applicable Law for Breach of Contract Claim (OCT 2004) |

Clauses incorporated by full text

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (Oct 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ( 31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) ( 31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004)(Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

X (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

_____ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

_____ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

_____ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) ( 41 U.S.C. 4712); this clause does

not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

X (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

(6) [Reserved].

_____ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

_____ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

_____ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) ( Pub. L. 115–390, title II).

_____ (11) (i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ( Pub. L. 115–390, title II).

_____ (ii) Alternate I (DEC 2023) of 52.204–30.

X (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) ( 31 U.S.C. 6101 note).

_____ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

(14) [Reserved].

_____ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

_____ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

(17) [Reserved]

_____ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (Oct 2022 (15 U.S.C. 644).

_____ (ii) Alternate I (Mar 2020) of 52.219-6.

_____ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

_____ (ii) Alternate I (Mar 2020) of 52.219-7.

_____ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)).

_____ (21)(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

_____ (ii) Alternate I (Nov 2016) of 52.219-9.

_____ (iii) Alternate II (Nov 2016) of 52.219-9.

_____ (iv) Alternate III (Jun 2020) of 52.219-9.

_____ (v) Alternate IV (Jan 2025) of 52.219-9.

_____ (22)(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020)(15 U.S.C. 644(r)).

_____ (ii) Alternate I (Mar 2020) of 52.219-13.

_____ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 637s)

_____ (24) 52.219-16, Liquidated Damages - Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

_____ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) ( 15 U.S.C. 657f).

_____ (26) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

_____ (ii) Alternate I (Mar 2020) of 52.219-28.

_____ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

_____ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

_____ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

_____ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15U.S.C. 637(a)(17)).

X (31) 52.222-3, Convict Labor (Jun 2003) (E.O. 11755).

X (32) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (Jan 2025)( E.O. 13126).

X (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

X (34) (i) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

X (ii) Alternate I (Feb 1999) of 52.222-26.

_____ (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020)(38 U.S.C. 4212).

_____ (ii) Alternate I (Jul 2014) of 52.222-35.

X (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

_____ (ii) Alternate I (Jul 2014) of 52.222-36.

X (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

X (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

X (39)(i) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

X (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

_____ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

_____ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

_____ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

_____ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ( 42 U.S.C. 7671, et seq.).

_____ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ( 42 U.S.C. 7671, et seq.).

_____ (44) 52.223-20, Aerosols (May 2024) ( 42 U.S.C. 7671, et seq.).

_____ (45) 52.223-21, Foams (May 2024) ( 42 U.S.C. 7671, et seq.).

_____ (46) 52.223-23 Sustainable Products and Services (May 2024) ( E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

_____ (47)(i) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

_____ (ii) Alternate I (Jan 2017) of 52.224-3.

_____ (48) (i) 52.225-1, Buy American - Supplies (Oct 2022) (41 U.S.C. chapter 83).

_____ (ii) 52.225-1, Alternate I (Oct 2022) of 52.225-1.

_____ (49)(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (Nov 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

_____ (ii) Alternate I [Reserved].

_____ (iii) Alternate II (Dec 2022) of 52.225-3.

_____ (iv) Alternate III (Nov 2023) of 52.225-3.

_____ (v) Alternate IV (Oct 2022) of 52.225-3.

_____ (50) 52.225-5, Trade Agreements (Nov 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

X (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

_____ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

_____ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

_____ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

_____ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ( E.O. 13513).

_____ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

_____ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

_____ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

X (59) 52.232-33, Payment by Electronic Funds Transfer - System for Award Management (Oct 2018) (31 U.S.C. 3332).

_____ (60) 52.232-34, Payment by Electronic Funds Transfer - Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

_____ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

X (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

_____ (63) 52.240-1,Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.)**.**

_____ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

_____ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 (b) and 10 U.S.C. 2631).

_____ (ii) Alternate I (Apr 2003) of 52.247-64.

_____ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

_____ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

_____ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards - Price Adjustment (JAN 2021) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

X (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment - Requirements (May 2014) (41 U.S.C. chapter 67).

_____ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services - Requirements (May 2014) (41 U.S.C. chapter 67).

_____ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

_____ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

_____ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records - Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products and commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause –

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) ( 41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ( Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204–30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015)

(x) 52.222-26, Equal Opportunity (Sep 2015) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi) (A) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain

Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) ( E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ( 31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1,Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 (b) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.217-8 Option to Extend Services (NOV 1999)
The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 5 calendar days.

(End of clause)

52.252-2 Clauses Incorporated by Reference (FEB 1998)
This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

Section D Performance Work Statement (PWS)
**D.1. PERFORMANCE WORK STATEMENT (PWS)**

LATIN AMERICA AND THE CARIBBEAN: DIGITAL INFRASTRUCTURE PROJECT SCOPING SERVICES

### D.1.1. OVERVIEW

The U.S. Trade and Development Agency (USTDA) supports the development of overseas infrastructure projects that advance the shared strategic interests of the United States and its overseas partners. These projects offer opportunities for the export of trusted U.S. solutions, including technology, goods, and services that support U.S. jobs.

USTDA is the U.S. government's first mover on critical infrastructure projects overseas. The Agency funds the upfront technical and design work that accelerates infrastructure development and helps projects attract financing. This includes project preparation activities such as feasibility studies, technical assistance, pilot projects, and front-end engineering and design studies.

### D.1.2. SCOPE OF WORK

USTDA requires services under this non-personal services Definitional Mission ("DM") contract to support its decision-making relative to the funding of activities, such as those identified in the Overview section above, to support U.S. industry participation in digital infrastructure projects in priority Latin America and Caribbean ("LAC") markets, including but not necessarily limited to Argentina, Bolivia, Brazil, Colombia, Dominican Republic, Ecuador, El Salvador, Guatemala, Jamaica, Mexico, and Paraguay.

The Contractor shall review and provide initial project assessments ("Project Assessments") for

up to twenty-five (25) proposals for feasibility studies, technical assistance, or pilot projects in the LAC digital infrastructure sector. Project Assessments are expected to be up to fifteen (15) pages in length. The Contractor shall develop full project reports ("Project Reports") for up to fifteen (15) of the Project Assessments for USTDA funding consideration. The Contractor shall deliver one (1) Final Report in cumulation to USTDA. USTDA reserves the right to make the final determination on which activities merit consideration for the Project Reports.

The Final Report, unless otherwise directed by USTDA, shall be labeled clearly on every page as "Business Confidential" and shall be treated accordingly per sections D.11, "Confidentiality," and D.12, "Intellectual Property."

The purpose of the Project Report is to:

1. Assess and provide a recommendation on whether USTDA should provide funding for the proposed feasibility study(ies), technical assistance, pilot project(s), or other activity(ies), hereinafter referred to as "activity(ies)";
2. Develop terms of reference and budgets for at least 15 activities for USTDA funding consideration.
    - If Contractor is having difficulty meeting this requirement, the Contractor must discuss the findings of the mission with the Contracting Officer's Representative (COR) in advance of writing the draft Project Report.
- The Contractor shall obtain the COR's written approval before developing any activity beyond the minimum one per country.
3. Provide supporting analysis for the recommendation on the activity in a project report that analyzes all the relevant issues.
4. In addition, the Contractor shall assess the potential of the relevant market sector in the host country for U.S. suppliers of goods and services in the Project Report.

The Contractor will not be paid for reports that are not approved or completed.

**The actual number of deliverables/reports against this contract is dependent on the success of the Definitional Mission and availability of projects.** Therefore, not all deliverables may be required or be possible and the figures provided for the Project Reports are not-to-exceed ceiling figures and not actual figures. The Contractor shall only invoice for work/deliverables actually completed. Any unexpended funds will be de-obligated from the contract at close-out.

*Foreign Language Proficiency*

It is preferred that the Contractor be proficient in both the Spanish and Portuguese languages at no less than the general professional proficiency level (Level 3 or above on the Interagency Language Roundtable scale). The resumes of the Contractor's proposed personnel shall indicate their respective Spanish and Portuguese language proficiency levels, as appropriate. If the Contractor does not meet the preferred language proficiency criteria, the Contractor shall demonstrate ability to fully perform the work described in this PWS through the use of translation and interpretation services as the Contractor deems necessary, and to the satisfaction

of USTDA.

### D.1.3. USTDA FUNDING CRITERIA

The Contractor's recommendations shall be based upon USTDA funding criteria, which are that the Project(s) must:

a) Be likely to receive implementation financing;
b) Have a procurement process that provides "equal access" to U.S. companies;
c) Represent an opportunity for sales of U.S. goods and services that is many times greater than the initial investment of USTDA assistance;
d) Be a development priority of the Project Sponsor and host country where the Project is located and have the endorsement of the U.S. Embassy in that host country; and
e) Involve U.S. companies that are facing market entry problems and/or strong competition from foreign companies which often receive subsidies and other support from their governments.

To execute this requirement, the Contractor shall:

1. Meet or have a conference call with the Latin America and Caribbean Regional Team to discuss the Definitional Mission;
2. Contact and/or meet with relevant U.S. companies to discuss their interest in digital infrastructure project opportunities in the LAC Region;
3. Optional travel to up to ten (10) LAC countries for approximately five (5) days each to meet with prospective grantees and other relevant stakeholders from the relevant sector;
4. Identify and evaluate project opportunities and provide recommendations for USTDA funding. Develop Terms of Reference and budgets for up to 15 activities for USTDA consideration;
    a. All project opportunities proposed by the Contractor must be approved by the COR prior to the drafting of a formal funding recommendation.

For each of the 15 activities to be recommended to USTDA, the Contractor shall develop a stand-alone Project Report. The requirements for the Project Reports are further detailed in section D.1.7, Reports.

### D.1.4. INFRASTRUCTURE SCREENING

In order to assure the quality, finance ability, and resilience of Activities that USTDA supports through project-preparation grants, environment-related and geophysical risks of the proposed Activity must be considered at the project scoping stage for all feasibility studies (FS) and technical assistance (TA) activities. USTDA aims to improve decision making by bringing USTDA-funded Activities into alignment with investor requirements as they relate to considerations of environmental impacts and impacts of other natural hazards. Accordingly, the Contractor shall conduct an Infrastructure Risk Screening utilizing the guidance provided in Attachment VII.

### D.1.5. PROJECT PROFILE

The DM supports early-stage project preparation that positions U.S. companies in high-growth LAC markets while promoting secure, trusted, and interoperable digital infrastructure consistent with U.S. national security priorities and Executive Orders on supply chain security, cybersecurity, and trusted technology deployment. Expanded connectivity and cloud infrastructure also enable AI deployment at scale, reinforcing U.S. leadership in AI and advanced digital technologies, reducing reliance on untrusted foreign vendors, and strengthening cybersecurity.

The DM includes optional travel at USTDA's discretion, which will be accounted for in a reimbursable budget. Depending on the needs identified by the LAC Regional Team, the Contractor may travel to the LAC region to identify projects for USTDA funding consideration, conduct in-depth market research, and meet with relevant key stakeholders and U.S. private sector companies.

### D.1.6. METHODOLOGY:

In the course of carrying out this DM, the Contractor must take the following steps:

#### D.1.6.1. NON-DISCLOSURE AGREEMENT AND KICKOFF

Upon award, the Contractor shall be required to sign a Non-Disclosure Agreement. To the extent that the work under this

contract requires that the contractor be given access to confidential information or proprietary data from the Government or other companies, the Contractor agrees to treat such information and data as confidential and to use the information only for the contemplated purpose. After signing the Non-Disclosure Agreement, the Contractor shall contact USTDA's COR to schedule a meeting or call to discuss details of the Contract assignment. The COR shall provide the Contractor with names and addresses of the potential project sponsor(s), other pertinent entities to contact in the United States and overseas, and any other relevant details or proposals that may impact the design and/or evaluation of the proposed activity(ies).

After reviewing these materials, contact the assigned COR to discuss initial observations and raise any questions or concerns about the proposal and the Project.

D.1.6.2. **PRE-VISIT REPORT**

No less than ***one week*** prior to departure to the host country, the Contractor shall provide the Contracting Officer (CO) and the COR a pre-visit written report containing:

a) The proposed schedule or itinerary;
b) Preliminary strategies or findings on viability of the project(s);
c) Financing options;
d) U.S. company interest in the project(s) and information about the sector in the host country, in general;
e) Summaries of proposed activity(ies) for USTDA's funding consideration to support the project(s) identified;
f) A list of contacts to be made during the visit;
g) A pre-visit checklist of issues, information and questions to be utilized during the visit; and
h) Pre-visit report a preliminary version of Attachment X (in Excel format), which will provide substantive comments on U.S. company interest in the project(s) and in the host country in general.

D.1.6.3. **COMMUNICATION WITH U.S. EMBASSY/CONSULATE IN HOST COUNTRY**

Communications with U.S. and foreign embassy officials prior to the award of this contract and completion of the kickoff meeting with USTDA in relations to the requirements of this contract is strictly prohibited.

D.1.6.4. **HOST COUNTRY TRAVEL**

The Contractor shall travel to the host country to meet with relevant project officials and with the U.S. Embassy and/or Consulate(s) in execution of this DM. The Contractor shall contact the Commercial and/or Economic Section(s) upon arrival and prior to departure for briefing and debriefing meetings. It is the Contractor's responsibility to arrange all meetings. The Commercial or Economic Section staff may be able to assist the Contractor in arranging some initial meetings with host country officials. The Contractor is also responsible for arranging its own logistics for the visit (e.g. lodging, transportation, interpretation services, etc.). In some instances, the USTDA Contractor may find it useful to purchase the Gold Key or Business Facilitation Services offered at the U.S. Embassy or Consulate. In some cases, the Contractor may need to contract with a local entity to assist with trip logistics and/or for interpretation services. However, substantive technical work may not be subcontracted to local entities. Contractor's travel shall commence within 30 days of contract award, unless otherwise agreed to in writing by the COR.

The Contractor is required acquire of the following travel insurance coverage for personnel traveling overseas in support of this requirement:

- Defense Base Act (DBA) Insurance and Medical Evacuation Insurance (for Contractors when they perform work overseas).

D.1.6.5. **CONTACTS**

The Contractor shall submit a list of individuals contacted during the Definitional Mission, and include at a minimum mailing addresses, phone and fax numbers, e-mail addresses, and a substantive summary of key comments that support the Contractor's recommendations. The list shall be submitted in Excel format and in accordance with to the specifications outlined in Attachment XIII, "U.S. Company Contacts" and Attachment I, "Definitional Mission: Project Report Requirements."

**D.1.7. DELIVERABLES**

The Contractor shall provide verbal updates to the COR on a regular basis. The deliverables may also take the form of information, advice, opinions, alternatives, analyses, evaluations, recommendations, Project Reports, or other oral or written work products needed for successful performance. The Contractor shall respond in a timely manner to reasonable requests for updates and information from the COR.

The Contractor shall provide the following reports to USTDA:

*(a)* Up to twenty-five (25) Project Assessments, each consisting of a preliminary evaluation of either a feasibility study, technical assistance activity, or pilot project in the digital infrastructure sector, assessing whether the project aligns with USTDA criteria and providing an impartial and objective recommendation as to whether a full Project Report should be developed. The Project Assessment is expected to be up to fifteen (15) pages in length. Each Project Assessment will be treated as business confidential and must conform to the guidelines established in this PWS.

*(b)* One Project Report for each project selected by USTDA for a Project Report. The Contractor shall submit each Project Report to the COR on a rolling basis. Each Project Report will be treated as business confidential and must conform to the guidelines established in this PWS.

*(c)* Final Report. The Final Report shall consist all of the Project Reports, inclusive of the Required Budget in individual Microsoft Excel files, that have been approved by USTDA must conform to the outline found in Attachment I and provide the requested information and analysis, unless otherwise agreed to in writing by USTDA. Further Final Report requirements are detailed in section D.1.7.2, Final Report.

Unless otherwise agreed to by USTDA, the Contractor shall submit all reports under this Contract to the COR on or about forty-five (45) calendar days upon return from final travel. If it is anticipated that Project Report(s) cannot be provided within this timeframe, the Contractor shall immediately contact the COR to discuss the reasons for the delay.

D.1.7.1 **PROJECT REPORT**

For each Project Report, the Contractor shall develop and prepare a report that complies with and satisfies all elements in the following PWS components:

a) PWS Section D.1.3. USTDA Funding Criteria
b) PWS Section D.1.4. Infrastructure Resilience Screening
c) PWS Attachment I. Project Report Outline, including Attachment V (Required Budget Format) and Attachment VI (Task Completion Schedule)
d) PWS Attachment II. Impact on U.S. Labor
e) PWS Attachment III. USTDA Nationality Requirements
f) PWS Attachment VII. Guidance on Infrastructure Resilience Screening
g) PWS Attachment VIII. U.S. Companies Contacted During the Course of the Definitional Mission

Additionally, the Contractor shall collect, review, and analyze all necessary information acquired from the following sources:

a) Proposal and supporting documentation provided by Project Sponsor(s) and related project parties; and
b) Meetings (including conference calls) with prospective Grantees, interested U.S. companies in the relevant sectors, as well as project finance sources.

**Prior to initiating a Project Report**, the Contractor shall obtain an official letter of interest/commitment from the Grantee demonstrating their commitment to the Project and working with USTDA and the selected U.S. Contractor on the Activity. If a letter cannot be obtained, the Contractor shall discuss and receive written approval from the COR prior to initiating the Project Report. Project Reports will not be approved by USTDA unless the official letter or written approval from USTDA authorizing the Project Report is included.

Following the completion of all Project Reports, the Contractor shall submit to USTDA a Final Report, which compiles all of the Project Reports that have been approved by USTDA. The Final Report submission shall also include the Required Budget Format for each Project Report in individual Microsoft Excel documents.

D.1.7.2 **FINAL REPORT**

The Contractor shall submit a DM Final Report that includes a complete description of the mission detailing the following:

(a) All projects reviewed during the course of the mission;
(b) All Project Reports, including the TOR and budgets the Contractor has developed in coordination with the Project Sponsor and U.S. firm for each project;
(c) Summaries of all meetings held in the U.S. and overseas for each Project Report;
(d) List of all persons attending the meetings and their contact information for each Project Report; and
(e) A brief explanation for any activity(ies) or project(s) that were reviewed and were not recommended for USTDA funding.

If it is anticipated that the Final Report cannot be provided within three (3) weeks following final travel to the Host Country(ies), the Contractor shall immediately contact the COR to discuss the reasons for the delay. The COR may also request the Contractor to provide portions of the Final Report before the submission of the entire Final Report.

Upon direction from the COR, the Contractor shall submit electronic copy of Final Report(s) to USTDA. **No hardcopy submissions will be accepted**. All reports must be paginated, clearly labeled, and submitted electronically in Adobe PDF format to USTDA via the following email:

**finalreports@ustda.gov**

The email subject line must include the title of the definitional mission and the project number so that it is easily identifiable. Any copies of Project proposal materials must be returned to USTDA with the submission of the Final Report.

Upon government acceptance of the Final Report, the Contractor shall submit an invoice, to USTDA.

### D.1.8. QUALITY CONTROL AND PERFORMANCE ASSESSMENT

#### D.1.8.1. Quality

he deliverables shall be grammatically and factually correct in all respects, internally consistent, and all statements and tables shall be clear and easily understood by a competent reader, and contain no typographical errors. The Contractor is responsible for quality control actions necessary to achieve quality in the delivery of the required services, which may include the services of a professional editor. The COR will reject a deliverable that does not conform in all respects to the Contract requirements, including but not limited to, the written quality of the Final Report. The Contractor shall correct all deficiencies at no additional cost to the Government.

#### D.1.8.2. Performance Assessment

During the course of contract period, the COR will track Contractor's performance. At the end of the performance period, the COR will assess the Contractor's performance in accordance with FAR 42.15 and report to the Contracting Officer for submission to the Contractor Performance Assessment Reporting System (CPARS).

The COR will consider all pertinent information during the preparation of the Contractor's performance assessment. The Contractor will be afforded the opportunity to identify factual errors. The COR's assessment is not subject to negotiation and the COR will not engage in discussions with the Contractor. Any errors identified by the Contractor will be addressed by the Reviewing Official. A copy of the final performance assessment will be available in the Past Performance Information Retrieval System (PPIRS).

### D.1.9. CONFIDENTIALITY

The proposal of the U.S. firm is a proprietary document and should not be distributed without permission from USTDA and the U.S. firm. The Contractor shall treat any proposal and supporting information submitted by the U.S. firm as business confidential in its entirety, unless otherwise stated in writing by the U.S. firm. The Contractor shall not include any business confidential information in the Public Market Report and shall include the following confidentiality certification in the final invoice:

***"I hereby certify that the Public Market Report contains no business confidential information."***

**D.1.10. INTELLECTUAL PROPERTY**

This Contract is funded by the United States Government. All intellectual property generated and/or delivered pursuant to this Statement of Work shall be subject to appropriate federal acquisition regulations which entitle the Government to unlimited rights to technical data developed exclusively with Government funds. The Government may: (1) use; (2) disclose; (3) reproduce; (4) prepare derivative works; (5) distribute copies to the public; (6) perform publicly; and (7) display publicly, the "data" in any manner and for any purpose, and have or permit others to do so (i.e., the Government may sublicense these rights to another contractor). See FAR 52.227-14(a).

**D.1.11. IMPARTIALITY**

It is essential that the DM be conducted with complete impartiality and objectivity and that the Contractor and its Subcontractors not obtain an unfair competitive advantage in USTDA-funded activities resulting from this Contract. In accordance with the principles of FAR Subpart 9.5 and USTDA policy, the Contractor and its Subcontractors, if any, for this Contract shall be ineligible to compete for, as a prime or subcontractor or otherwise, USTDA-funded activities that result from this Contract, unless USTDA through its Office of Acquisition Management, shall have granted a waiver, based upon FAR 9.503, that preclusion of the Contractor or its Subcontractors from the follow-on activity would not be in the Government's interest. This restriction shall remain in effect for three (3) years from the termination of this Contract or until the awarding of a USTDA-funded feasibility study resulting from this contract. The Contractor is responsible for including this restriction in all subcontracts under the Contract.

**D.1.12. COORDINATION WITH OTHER CONTRACTORS**

The government may award other contracts for additional work not prescribed in this contract. The Contractor shall fully cooperate with such other contractors in performance of the requirement herein, and as directed by the Contracting Officer. The Contractor shall not commit or permit any act, which will interfere with the performance of work by any other USTDA Contractor.

**D.1.13. PERIOD OF PERFORMANCE:**

The Period of Performance for this Contract shall be two (2) years from the date of the Contracting Officer's signature on the Contract.

**D.1.14. PLACE OF PERFORMANCE:**

The places of performance shall be in the Latin America and Caribbean region, and at the Contractor's facility (travel is optional, as determined by USTDA).

**D.2. ATTACHMENTS**

| ATTCH/ EXHIBIT | TITLE |
|---|---|
| I | Project Report Outline |
| II | Impact on U.S. Labor Statement |
| III | USTDA Nationality Requirements |
| IV | Required Budget Format |
| V | Task Completion Schedule |
| VI | Budget Narrative Requirements |
| VII | Guidance on Infrastructure Resilience Screening |
| VIII | U.S. Companies Contact |

**Attachment I**

**Project Report Outline: Business Confidential Analysis and Recommendation**

**A. Executive Summary.**

The Contractor shall provide an executive summary of its findings and recommendations.

**B. Project Description.**

The Contractor shall hold meaningful discussions with appropriate contacts to determine how USTDA's funding can be used most effectively to support the implementation of the project(s) identified in the host country.

The Contractor shall provide a brief description and history of the project (the "Project"). The Contractor shall describe the proposed technology from the U.S. firm to be used in the Project. The Contractor shall gauge the interest of potential project financiers and potential U.S. suppliers and assess whether the proposed USTDA activity(ies) will help accomplish the project(s) goals. The Contractor shall provide relevant information to potential project sponsors regarding USTDA's evaluation criteria, timeline, and due diligence requirements. The Contractor shall describe whether the proposed U.S. solution is technically viable and/or commercially available. If the Contractor finds the proposed U.S. solution is not technically viable and/or commercially viable, the Contractor shall discuss these issues with USTDA program staff before providing a recommendation.

The Contractor shall describe relevant issues to the Project [e.g. host country and/or other stakeholders, sector, Project location, source of raw materials, infrastructure requirements, proposed technological approach, legal and regulatory framework (licenses, permits, etc.), implementation schedule, economic fundamentals (estimated capital cost, operating costs, interest expense, taxes, expected revenues, etc.), the specific objectives of the proposed activity, how the proposed USTDA activity supports the Project implementation process, and any other variables or issues the Contractor deems critical as part of a thorough activity/Project evaluation.]

**C. Project Sponsor's Capabilities and Commitment.**

This section describes the Project sponsor's commitment and capabilities to undertake the activity and the subsequent Project. The purpose is to understand the experience of the Project sponsor and any previous work undertaken by the Project sponsor in the sector. This section should also include a discussion of any potential risks of working with the Project sponsor that could delay Project implementation. This can take many forms but should at a minimum address the applicable points below:

- A thorough description of the host country Project sponsor, including its structure, capabilities, operations, and decision-making ability pursuant to the Project, and
- An assessment of the Project sponsor's commitment and ability to implement the Project (e.g. the Project sponsor's previous experience, current commitments, responsiveness, business activities, and government mandate).

**D. Implementation Financing.**

This section describes the Project sponsor's plans to secure financing to implement the Project. This can take many forms but should at a minimum address the points below:

- An assessment of the overall cost estimate of the Project;
- For Projects involving potential equity investment, the Project's proposed debt-equity structure to ensure that it corresponds to the requirements of the prospective lenders (this aspect is critical to USTDA's decision making); and
- A review of the financing options for Project implementation.

The Contractor is required to contact officials from the potential financing institutions, including, where appropriate, multilateral lending institutions, Export Import (Ex-Im) Bank, the U.S. International Development Finance Corporation (DFC), and private/commercial sources, to ensure that the Project sponsor(s) has adequately explored all financing options. The Contractor shall provide names and phone numbers of contacts at the potential financing institutions and summarize their comments. The Contractor must determine the most likely source(s) of implementation financing for the Project. The Contractor must ensure that the Terms of Reference (TOR) for the activity fulfill the requirements of the most likely financing source(s).

**E. U.S. Export Potential.**

This section describes the U.S. export potential that may result if the Project is implemented. The purpose is to estimate the U.S. export potential in order to justify USTDA funding for the activity. This can take many forms but should at a minimum address the points below:

The Contractor shall provide a best estimate of potential procurement of U.S. goods and services for Project implementation. This estimate should be supported by a breakdown by category and dollar value of goods and services likely to be imported for the Project and an illustrative list of potential U.S. suppliers of the goods and services for those goods and services listed as likely U.S. exports. The Contractor shall include U.S. content in their evaluation of U.S. exports, including an analysis of U.S. manufacturing and services sourced from the United States that would most likely be used for the Project. The Contractor shall cross-check the U.S. firm's estimates of U.S. export potential with independent relevant sources, such as:

- USTDA program staff and USTDA's evaluations data;
- The U.S. Department of Commerce's International Trade Administration;
- Industry and trade associations; and
- Outreach with other U.S. suppliers in the sector.

The Contractor shall describe how procurements are typically conducted: 1) in the sector; 2) by the Project sponsor; and 3) in the host country. The Contractor shall confirm whether there are local content requirements or procurement restrictions in this sector or for the Project and whether a local provider/distributor will be or is likely to be involved in Project implementation. The Contractor shall also list any import licensing requirements or permits needed by U.S. companies to participate and supply goods for the Project. The Contractor shall also identify any U.S. companies already working with the Project sponsor or working in the respective sector in the host country.

The Contractor shall provide a report that summarizes its discussions with U.S. companies that provide goods or services for the Project, and their level of interest in the Project should also be included. The Contractor shall take note on not only the U.S. company's general interest in the relevant sector or country, but also interest in the specific Project. The Contractor shall analyze how competitive the U.S. company's goods or services would be if the Project reaches the implementation stage. To ensure no one is given unfair advantage to compete for USTDA's funding or the Project implementation, the Contractor should be sensitive to disclosing information about the proposed USTDA activity.

The Contractor shall submit a complete list of U.S. companies and other entities contacted, with the name and contact

information of individuals interviewed and their responses.

**F. Foreign Competition and Market Entry Issues.**

This section describes foreign competition and market entry issues in the host country. The purpose is to demonstrate why USTDA funding may be needed in order to level the playing field for U.S. companies. This can take many forms but should at a minimum address the points below.

The Contractor shall provide a discussion of the foreign competition for goods and services likely to be procured for Project implementation by category. The Contractor shall include a discussion of U.S. industry competitiveness in each category, taking into account geographic factors, host country industry capabilities, technology and licensee issues, past procurement tendencies of the Project sponsor, and how the procurement is likely to be conducted. Where relevant, the Contractor shall discuss the extent to which market entry issues impede exports and trade and how the activity will help overcome these obstacles.

**G. Evaluation Strategy.**

This section describes the strategy by which the Project, if implemented, should be evaluated. The purpose is to concisely describe the baseline goals and objectives of the Project, along with any potential risks or timeline hindrances, so the actual implementation results can be evaluated accordingly. This can take many forms but should at a minimum address the points below:

- Goals and objectives:
  - Clearly define the goals of the Project and identify what will constitute success
    - Ex: For trade capacity building or legal project, any change in law as result of Project
  - Identify key sources for information needed to determine if USTDA's activity attained its objective
  - Identify potential methods of measurement for evaluation specific to the Project

- Process and Timeline:
  - What is the step-by-step process the Project will follow to be implemented, following USTDA's funding?
  - What is the anticipated Project development timeline? This may change, but it is important to know what the original goal is as it will influence USTDA's evaluation effort.
  - How are procurements typically conducted in the sector for this host country?
  - Will there be local content requirements?
  - Will a local provider/distributor be involved?
  - Will there be one big procurement or several smaller ones? Will other entities be involved if the procurements are small?

- Risks:
  - Identify potential difficulties in measuring results and ways to mitigate those difficulties
  - Is any regulation needed before the Project can be developed (e.g. power purchase agreement standards)?
  - Are there other entities that must authorize/approve implementation? List them according to their priority in the approval chain.

- Key Leads:
  - Are there US companies that already have business with the Project sponsor or in the sector? If so, what is USTDA's added value for these companies' ability to pursue additional business?
  - Are there any companies short-listed for procurements? If so, are they short listed via direct sales, distributor, etc.?

**H. Developmental Impact.**

The COR shall identify at least one viable and quantifiable Development Impact Measure that will result from the Project being implemented based on the recommendations of the USTDA activity. The Contractor shall provide the following information for

each indicator identified by the COR for each activity: 1) current status, prior to USTDA's activity and Project implementation (Baseline); 2) anticipated outcomes should the Project be implemented, based on the recommendations of the USTDA activity; 3) the anticipated timeline for the realization of these outcomes; and, 4) how such information can be measured and what sources could be utilized to determine whether the outcome was realized.

**I. Impact on the Environment**

The Contractor shall provide a statement regarding the likely consequences the proposed Project may have on the environment. The Contractor shall ensure that the TOR for the activity includes, at a minimum, a Preliminary Environmental and Social Impact Assessment (PESIA), with reference to local requirements and requirements of potential financing source(s) of the Project. The Contractor should identify potential negative impacts and discuss the extent to which they can be minimized or mitigated.

**J. Infrastructure Risk Screening**

The Contractor shall conduct an Infrastructure Risk Screening utilizing the guidance provided in Attachment VII. Based on the results of the Screening, the Contractor shall assess the environment-related and geophysical risks to the project as low, moderate or high. The Contractor shall provide a detailed explanation for this assessment.

The three risk categories can be thought of in the following terms (see Annex VII for additional information):

- Low risk: the risks to the Project from environment-related and geophysical hazards is negligible. There are no discernible material risks to the Project due to environmental change or natural hazards.
- Moderate risk: the effects of environmental or other geophysical risks could adversely affect the use, technical performance, or lifetime of the infrastructure, or have detrimental effects on the financial performance of the asset (for example, by raising costs, requiring expensive maintenance, or reducing revenue or the likelihood of loan repayment). Future environmental conditions and potential geophysical hazards should be considered in design standards for the Project.
- High risk: environmental and/or geophysical risks could pose a significant threat to the performance, economic viability, lifetime or future usability of the Project.

In the Infrastructure Risk Screening, the Contractor shall identify potential environment-related risks to and vulnerabilities of the Project (for example, sea level rise, drought, or floods) as well as geophysical hazards (for example, earthquakes, tsunamis, volcanic eruptions, or landslides) that create risks to the Project and discuss opportunities for the Project to, at a minimum, minimize or mitigate the risk or, at best, actively incorporate environmental and disaster resilience into the design of the Project. If the risk is high, the Contractor shall provide a recommendation as to whether the approach to or design of the Project can be revised to ensure long-term sustainability, or whether, in the Contractor's view, the environment-related or geophysical risks and vulnerabilities are so severe that the Project should not move forward as planned.

**K. Impact on U.S. Labor.**

The Contractor shall provide an assessment of the impact of the Project on U.S. labor. The Contractor shall address the legislative prohibitions on the use of Foreign Assistance funds described in Attachment II and any implication such prohibitions may have on the activity and/or Project.

**L. Qualifications.**

The Contractor shall provide a review of the capabilities of the U.S. firm submitting the proposal and the qualifications of the proposed U.S. firm's personnel.

**M. Justification.**

The Contractor shall provide an explanation of why USTDA's grant funding is needed, including a description of how the Project would support U.S. government policy priorities and promote trade, how USTDA's participation would add value to the Project's development, and how the success of the Project would be measured in terms of trade capacity and development impact.

**N. Recommendations.**

The Contractor shall provide analysis and recommendations as to whether or not the Project meets USTDA's basic funding criteria as defined in Section 3 in the Definitional Mission Performance Work Statement.

If the recommendation is that USTDA should fund the activity, but in a phased approach or only if certain outstanding issues are resolved or conditions met, those phases, issues or conditions should be clearly delineated and discussed in the recommendation.

**O. Contacts.**

The Contractor shall provide a list of individuals contacted during the Definitional Mission and fill out Attachment VIII. The list shall include the address, phone and fax numbers, and e-mail address of each individual.

**P. Terms of Reference.**

For Contractor shall be responsible for submitting to USTDA a Terms of Reference ("TOR") and budget for the activity that conforms to USTDA's requirements. This work shall entail working with the U.S. firm and the proposed Project sponsor to develop the TOR and budget for the activity using the U.S. firm's and Project sponsor's draft proposal as a basis. The TOR, which must be approved by the Project sponsor and the U.S. firm, should include, at a minimum, the following:

1. **Purpose and objective of the activity.** This section will contain a concise statement describing the activity.

2. **A technical assessment.** This section will include relevant background information and analysis that is pertinent to the technical feasibility of the Project (e.g. site selection, gap analysis, data collection, comparative analysis, parameters for pilot project implementation, baseline indicators and key performance indicators, a review of any previous reports or studies related to the Project, and an assessment of technologies to be used in pilot project implementation).

3. **An economic analysis of the Project.** This section will include a detailed analysis on all of the costs associated with the implementation of the Project, and relevant additional economic analyses relevant to the viability of the Project. This section shall provide all relevant information pertaining to the economic analysis of the Project (e.g. a cash flow analysis, analysis of market conditions, raw material availability, supply agreements, off-take agreements, competing alternative methods of achieving the same or similar Project objectives). This analysis should also include the internal rate of return under a variety of different assumptions (e.g. different interest rates, depreciation, licensing fees, and import duties).
   In addition, in order to provide the Project sponsor with sufficient information to responsibly implement, manage, and maintain the Project for the duration of the investment, this section will provide a Life Cycle Cost Analysis (LCCA) as part of the overall Project cost estimate. The LCCA shall examine the total initial capital costs to plan, design, develop, and build the Project, and also shall include a detailed analysis of the costs associated with the medium-term and long-term operation of the Project, which includes maintaining the facilities, equipment, and other assets financed as part of the Project. Such costs include, but are not limited to, warranties, operation, maintenance, acquisition, installation, refurbishment, and disposal costs that could be encountered throughout the life of the Project.

4. **A financing plan for the Project.** This section shall provide an analysis on the different types of financing (e.g. equity, debt) available for Project implementation. This section will assess whether or not potential public and private financing organizations (e.g. the World Bank, relevant regional multilateral development banks, Ex-Im and DFC) are

interested in providing financing for Project implementation. This section shall include a financing plan and a financing strategy, including several approaches to securing financing for the Project based on discussions with the Project sponsor, potential lenders and potential financiers. This section shall outline the rationale for the financing plan and financing strategy and shall take into account a number of relevant factors (e.g. timing, interest rates, and potential financing terms). This section shall also provide a recommendation for the most effective financing sources for the Project.

This section shall include a sensitivity analysis of the return on investment (ROI). The sensitivity analysis shall account for the cost recovery indicators based on different assumptions for key Project variables, such as electricity tariffs, sales volumes, capital and operating cost estimates, and interest rates and investment requirements.

If sources of financing are not yet confirmed, this section shall identify the potential sources of financing. The U.S. firm, with the Project sponsor's express permission, shall contact the potential sources of financing to assess the likelihood of receiving financing from such sources. This section shall outline the sources including, but not be limited to, bilateral financing institutions, multilateral financing institutions, international financing institutions and local and regional commercial banks.

This section shall also identify any and all Project risk factors and including a risk avoidance/reduction plan for each factor by means of insurance and bonding or other means. The plan shall meet the requirements of the potential financing sources, including host country sources, multilateral financiers, international financing institutions and others.

5. **An appropriate Preliminary Environmental and Social Impact Assessment (PESIA) of the Project.** This section shall include a preliminary review of the Project's anticipated impact on the environment with reference to host country requirements and those of potential financiers (e.g., the World Bank or other multilateral development banks (MDBs), the International Finance Corporation (IFC), commercial or investment banks, or other financial institutions). This review may reference common international best practice standards, such as the IFC Performance Standards, the Environmental and Social Framework (ESF) of the World Bank, environment and social standards of other MDBs, and the Equator Principles. This review shall identify potential negative impacts and discuss the extent to which they can be mitigated, including recommendations for specific mitigation actions. The U.S. firm shall develop plans for a full Environmental and Social Impact Assessment (ESIA) as part of further Project development following the completion of the FS or TA. This includes the identification of steps that will need to be undertaken by the Project sponsor subsequent to the activity's completion and prior to Project implementation.

   If the Infrastructure Risk Screening (see J above) indicated the need for specific environmental or disaster risk or resilience considerations during the FS or TA, the Contractor shall propose language detailing how the U.S. firm should conduct this analysis and address these risks in its recommendations (see Attachment VII).

6. **A review of regulatory issues and the legal framework related to the Project.** This section shall include a discussion of the relevant regulatory structure needed, including an assessment of any regulations that would impact the Project's viability, a prognosis to move forward, and a need for additional regulations. Unless otherwise specified, this review shall include a review of current and proposed regulations, permitting requirements, licensing requirements, legal framework, construction approvals, foreign participation regulations, regulations that impact environmental requirements, and any other regulatory issues that may have a significant impact on the Project. This section shall identify policy and/or legislative actions that could either act as potential barriers to the implementation of the Project or would be necessary for implementation of the Project. This section shall also review any pending or potential regulatory actions that may impede Project implementation. If the Project does not meet all requirements, the U.S. firm shall identify methods to overcome those deficiencies.

7. **An analysis of key host country development impacts.** This section of the TOR shall detail the anticipated host country impacts of the Project. This task shall incorporate the baseline information gathered by the Contractor, and provide clear instructions to the Project sponsor and U.S. firm to update this baseline information to accurately reflect new projections based on the analysis of Project

feasibility and recommendations set forth in other tasks. The Contractor shall draft task language along the following lines: The Contractor shall work closely with the Project sponsor during this task to ensure that the projected development impacts are viable and measurable. The Contractor shall provide quantitative and qualitative assessments of the potential impact of implementing the Project, with specific attention to the following indicators: improved digital communication access and improved data management and security, among others to be proposed by the Contractor and ultimately approved by USTDA. For the qualitative assessment, the Contractor shall provide narrative descriptions of how the implementation of the Project is anticipated to impact each of the above indicators. For the quantitative assessment, the Contractor shall provide a baseline measurement and anticipated outcome for each of the above indicators. The assessment shall clearly articulate the anticipated timeline for the realization of these outcomes, how such information can be measured, and what sources could be utilized to determine whether the outcome was realized. The Contractor may propose alternate indicators, as appropriate, based on the results of the technical analysis with USTDA approval.

Deliverable: The Contractor shall provide a report of all work performed under this Task, including, but not limited to, an assessment of the potential development impact in the host country if the Project is implemented according to the Study recommendations.

8. **U.S. sources of supply.** This section of the TOR shall contain a task for an assessment of U.S. sources of supply for all goods and services required to implement the Project. This section shall include a list that includes (i) the possible U.S. sources of supply and/or services for the Project, (ii) a detailed description of relevant products, solutions and/or services to be provided, and (iii) contact information for the party or parties responsible for marketing/sales in the host country. The business name, point of contact, address, telephone number, and e-mail address shall be included for each identified party. This shall include different types of U.S. suppliers that would be relevant to the implementation of the Project (e.g. technology license providers, engineering and construction companies, project management and oversight companies; equipment providers; and U.S. suppliers of environmental protection and compliance equipment). The list may also include information on potential U.S sources of services that the Project sponsor may need for the successful technical and commercial operation of the Project, such as operating management, maintenance management, product quality control, and product marketing assistance.

   The U.S. firm shall be expected to be in direct contact with potential U.S. suppliers. The U.S. firm shall meet with U.S. companies to better understand their interest in the Project. The U.S. firm shall also identify any potential challenges for U.S. suppliers and ways to mitigate these challenges. For competed projects, the U.S. firm shall prepare a Project announcement that can be publicly distributed to various U.S. based equipment and service firms announcing the Project and the requirements (at an informational level).

   The U.S. firm shall engage relevant potential suppliers in discussions and analyze their interest in supplying equipment and services for the Project. The U.S. firm shall inform the Project sponsor of which U.S. suppliers have expressed interest in the Project.

9. **An implementation plan.** This section shall include the work required, after the conclusion of the activity, to implement the Project, with a corresponding timeline of when each step is anticipated to occur. This section shall include all relevant information pertaining to the implementation of the Project and specifically address any gaps and inefficiencies identified during the course of the activity. The implementation plan shall provide the Project sponsor with a detailed description of the gaps and the options to mitigate each of them, coupled with a cost/benefit breakdown for each option (e.g. technology procurement, installation, site preparation, any facility renovations/construction, civil modifications required during construction, short and long-term training requirements, operations and maintenance, a proposed annual budget requirement for the Project, any relevant changes to the Project sponsor's corporate structure that could bolster the implementation of the Project, Key Performance Indicators including their baselines and proposed annual targets, power purchase agreements, and construction requirements). The implementation plan shall also include a detailed strategy on how the Project will meet any regulatory, licensing, permitting, and environmental requirements identified in Tasks 4 and 5. The implementation plan shall be of sufficient scope and detail for presentation to potential financing source(s).

The U.S. firm's implementation plan and budget shall be based on the final agreed-upon strategy for Project implementation as recommended by the U.S. firm and adopted by the Project sponsor.

10. **Project Report.** The U.S. firm shall prepare and deliver to the Project sponsor and USTDA a substantive and comprehensive project report of all work performed under the TOR. The project report shall be organized according to the above tasks and shall include all deliverables and documents that have been provided to the Project sponsor. The project report shall also include an Executive Summary. The project report shall be prepared in accordance with Clause I of Annex II of the Grant Agreement.

*The TOR must be designed to meet the requirements of the most likely source(s) of implementation financing. The requirements of some of the potential financing sources may be found at the following web sites:*

www.dfc.gov
www.exim.gov
www.ifc.org
www.adb.org
www.ebrd.com
www.iadb.org
www.afdb.org

**Q. ACTIVITY BUDGET (2-3 PAGES)**

**Activity Budget Format**

The Contractor shall provide a detailed budget that is divided into two parts: a line-item budget and task breakdown (Attachment IV) and a Task Completion Schedule (Attachment V). For sole-source proposals, the Contractor shall develop this detailed budget to assist USTDA with assessing the cost reasonableness of the U.S. firm's proposal using an independent government cost estimate (IGCE). As such, the Contractor shall develop this detailed budget without reference to the U.S. firm's proposed budget.

All costs in the budget should be reasonable and allocable to the work being performed and should cover all of the work required under the activity's TOR. The budget should be supported with sufficient detail to enable USTDA staff or others reviewing the material to understand completely, not only the budgeted amounts, but also the methodology that justifies the budget amounts. The budget should be provided in accordance with the format in Attachment IV and should include:

- Labor, budgeted by position title and task for each of the positions on the U.S. firm's team. Positions should be identifiable, with descriptions of the positions and proposed team members included in the proposal. Person-Days should reflect the proposed number of days of work effort proposed for each position for each task. The labor cost shall be derived as set forth in Attachment IV.

- Itemization for per diem, transportation, communications, purchased services/contracts, translation of project report, and other direct costs, as applicable. Per diem must be based on U.S. Government rates, which are available on the State Department web site (https://aoprals.state.gov/web920/per_diem.asp) .

- For each line item, the Contractor shall include an explanation for how all costs were derived.

The Task Completion Schedule should list each major task to be performed in support of the activity's TOR. The duration of each task is to be graphically presented in a bar chart as illustrated in Attachment V.

The budget narrative should provide a detailed budget explanation and justification presenting how all costs have been derived in accordance with the sample provided in Attachment VI. The narrative must include an explanation for every line item. In general, each narrative statement should describe, in as much detail as possible:

- What the specific item is
- How the specific item relates to the activity
- How the amount shown in the budget was arithmetically determined

Finally, if requested, the Contractor shall provide technical inputs and feedback to USTDA to assist with negotiations with the U.S. firm on the final, negotiated budget.

## Attachment II

**Impact on U.S. Labor Statement**

The Foreign Operations, Export Financing and Related Programs Appropriations legislation restricts U.S. foreign assistance from being used to provide:

(a) any financial incentive to a business enterprise currently located in the United States for the purpose of inducing such an enterprise to relocate outside the United States if such incentive or inducement is likely to reduce the number of employees of such business enterprise in the United States because United States production is being replaced by such enterprise outside the United States;

(b) assistance for any program, project, or activity that contributes to the violation of internationally recognized workers' rights, as defined in section 507(4) of the Trade Act of 1974, of workers in the recipient country, including any designated zone or area in that country: *Provided*, That the application of section 507(4)(D) and (E) of such Act should be commensurate with the level of development of the recipient country and sector, and shall not preclude assistance for the informal sector in such country, micro and small-scale enterprise, and smallholder agriculture;

(c) any assistance to an entity outside the United States if such assistance is for the purpose of directly relocating or transferring jobs from the United States to other countries and adversely impacts the labor force in the United States; or

(d) for the enforcement of any rule, regulation, policy, or guidelines implemented pursuant to—

(A) the third proviso of subsection 7079(b) of the Consolidated Appropriations Act, 2010;

(B) the modification proposed by the Overseas Private Investment Corporation in November 2013 to the Corporation's Environmental and Social Policy Statement relating

to coal; or

(C) the Supplemental Guidelines for High Carbon Intensity Projects approved by the Export-Import Bank of the United States on December 12, 2013, when enforcement of such rule, regulation, policy, or guidelines would prohibit, or have the effect of prohibiting, any coal fired or other power-generation project the purpose of which is to: (i) provide affordable electricity in International Development Association (IDA)-eligible countries and IDA-blend countries; and (ii) increase exports of goods and services from the United States or prevent the loss of jobs from the United States.

## Attachment III

**USTDA Nationality Requirements**

The purpose of USTDA's nationality, source, and origin requirements is to assure the maximum practicable participation of American contractors, technology, equipment and materials in the pre-feasibility, feasibility, and implementation stages of a project.

Award is limited to U.S. firms or U.S. individuals. Contractor and U.S. subcontractor employees used shall be either U.S. citizens or non-U.S. citizens lawfully admitted for permanent residence in the United States. Contractor use of subcontractors is limited to less than fifty percent of the proposed price. International transportation and insurance must have their

nationality, source and origin in the United States. Local lodging, food, and transportation in the host country are not subject to this restriction.

**Nationality:**

Definitions

A "U.S. individual" is (a) a U.S. citizen, or (b) a non-U.S. citizen lawfully admitted for permanent residence in the United States (a green card holder).

A "U.S. consultant" is (a) a U.S. citizen whose principal place of business is in the United States, or (b) a non-U.S. citizen lawfully admitted for permanent residence in the United States (a green card holder) whose principal place of business is in the United States.

A "U.S. firm" is a privately owned firm that is incorporated in the U.S., with its principal place of business in the U.S., and which is either (a) more than 50% owned by U.S. citizens and/or non-U.S. citizens lawfully admitted for permanent residence in the United States, or (b) has been incorporated in the U.S. for more than three (3) years prior to the issuance date of the request for proposals; has performed similar services in the U.S. for that three (3) year period; employs U.S. citizens in more than half of its permanent full-time positions in the U.S.; and has the existing capability in the U.S. to perform the work in question.

A partnership that is organized in the U.S., has its principal place of business in the U.S., and is more than 50% owned by U.S. citizens and/or permanent residents, qualifies as a "U.S. firm".

A nonprofit organization, such as an educational institution, foundation, or association, also qualifies as a "U.S. firm" if it is incorporated in the U.S. and managed by a governing body, a majority of whose members are U.S. citizens and/or permanent residents.

**Attachment IV**

Notes:

1. Unless otherwise agreed by USTDA, Grant Funds may not be used to fund any equipment-related costs.
2. Primary Contractor (Employee) Labor Costs = Salary + Overhead + Benefits + Reasonable Profit
3. Non-Employee Labor Cost = Salary + Overhead + Benefits + Reasonable Profit
4. Purchased Services and Contracts may include engineering drawings, lab work, surveys, translation, etc., which would not be included under the Non-Employee Labor Cost heading.
5. Budget must comply with USTDA National Source And Origin Requirements, Including 30% Host Country Maximum.

## Attachment V

**Task Completion Schedule**

| Weeks | 1 | 2 | 3 | 4 | 5 | 6 | 7 | 8 |
|---|---|---|---|---|---|---|---|---|
| Task I | | | | | | | | |
| Task II | | | | | | | | |
| Task III | | | | | | | | |
| Final Report | | | | | | | | |

**Instructions**

List each major task to be performed. The duration of each task is to be graphically represented. For example, in the illustrative schedule, Task 1 is to begin in Week 1 and end in Week 4. Preparation of the Project Report begins in Week 6 and is completed in Week 8

## Attachment VI

**BUDGET NARRATIVE REQUIREMENTS**

**DIRECT COSTS**

**Direct Labor** - Only salaries and wages for employees of the proposed U.S. firm should be identified here. Provide the job title; the names of the individuals, if known; the experience and training that describes the individual's capabilities for the activity and supports the proposed daily rate; and an explanation of what work the individual will perform under the Terms of Reference. The direct labor rates will be presented as fully-burdened labor rates, inclusive of profit. If possible, provide the mathematics for how the loaded rate was developed. The Contractor should reference other U.S. Government-approved fully loaded rates for the U.S. firm to the extent applicable; for instance, if the U.S. firm has approved GSA Schedule rates, the Contractor can reference those rates. Document the Contractor's methodology for assessing labor cost reasonableness in each instance.

Examples:

Project Manager/Senior Engineer – This individual will provide necessary guidance and support to the activity to ensure successful completion of the System Design and oversee the completion of the Terms of Reference. The proposed individual has 15 years' experience managing telecommunications projects. It is estimated that 130 days will be required at a daily rate of $1455. The rate was calculated with a base salary of $776 a day and includes a fringe benefit rate of 25% and an overhead rate of 50%. Profit of $11 a day is included because [note: *justification should be included here*].

Junior Engineer – This individual will work with the Senior Engineer to develop the system design and provide documentation for the feasibility study. It is estimated that 75 days will be required at a daily rate of $728 a day. The rate was calculated with a base salary of $388 a day and includes a fringe benefit rate of 25% and an overhead rate of 50%.

**Other Direct Labor** – Consultants and other Non-Employee Labor should be identified here. Provide the job title; names of the individuals, if known; primary organization affiliation, if applicable; experience and training that describes the individual's capabilities for the activity and supports the proposed daily rate; and an explanation of what work the individual will perform under the Terms of Reference. Rates will be presented as fully-burdened labor rates, inclusive of profit. If possible, provide the mathematics for how the loaded rate was developed.

Example:

Independent Consultant – This individual will develop questionnaires and surveys to gather data from local participants and officials for the marketing plan. The individual will have experience developing and administering questionnaires and knowledge of the host country. It is estimated that 30 days will be required at a daily rate of $577 a day. The rate was calculated with a base salary of $300 a day and includes a fringe benefit rate of 30% and an overhead rate of 45%. Profit of $11 a day is included because [note: *justification should be included here*].

## OTHER DIRECT COSTS

**Purchased Services/Contracts** –

For each purchased service or contract, include a clear description of the work to be performed as it relates to the Terms of Reference and a separate detailed budget. If the contractor or vendor is known, provide a basis for selection.

Examples:

Translation Services – A translation service provider will be hired to translate the project report. Generally, it is estimated that 1000 pages will be translated at $1.00 a page.

ABC Marketing, Inc. – This contractor was selected because they have 10 years' experience developing marketing plans with significant experience in the host country. ABC Marketing will develop the marketing plan utilizing the data collected from questionnaires and surveys. Attached is ABC Marketing's detailed budget of $15,324.

### Domestic and Foreign Travel

Include the destination and its relationship to the Project and the direct relevance to the Terms of Reference. Itemized costs must be included for each trip.

Examples:

The Project Manager/Senior Engineer and the Junior Engineer will travel to the host country for the Kick-Off Meeting and two subsequent trips for System Design Work. The Independent Consultant will travel to the host country for the Kick-Off Meeting and two subsequent trips for collection of data for the Marketing Plan.

One Kick-Off Meeting to be attended by the Project Manager/Senior Engineer, Junior Engineer, and Independent Consultant

Roundtrip Airfare (Economy Class): $2,973/per Trip X 3 People = $8,919

Per Diem: $182 X 10 days X 3 People = $5,460

Local Transportation: $250/trip X 9 Trips = $2,250

Transportation to/from Airport: $100/Trip X 4 Trips = $400

Two System Design Trips (10 days each) for the Project Manager/Senior Engineer and Junior Engineer

Roundtrip Airfare (Economy Class): $2,973 X 2 Trips X 2 People = $11,892

Per Diem: $182 X 2 Trips X 10 days X 2 people = $7,280

Local Transportation: $250/trip X 18 Trips = $4,500

Transportation to/from Airport: $100/trip X 4 trips = $400

Two Data Gathering Trips for the Marketing Plan (10 days each) for the Project Manager/Senior Engineer and Independent Consultant

Roundtrip Airfare (Economy Class): $2,973 X 2 Trips X 2 People = $11,892

Per Diem: $182 X 2 Trips X 10 days X 2 people = $7,280

Local Transportation: $250/trip X 18 Trips = $4,500

Transportation to/from Airport: $100/trip X 2 trips = $200

### Other Expenses

Other expenses may include such items as reproduction, publishing costs, and telephone calls. Provide a detailed explanation for each item as to how it directly relates to the Terms of Reference and include calculations on how the numbers have been derived.

Example:

Reproduction of the Final Report – Eight copies of the final report will be reproduced and bound in accordance with the final report specifications provided by USTDA.

Reproduction: 1000 Pages X $.10/per Copy X 8 Copies = $800
Binding and Final Report Specifications: $20/per Copy X 8 Copies = $160

## Attachment VII

## GUIDANCE ON INFRASTRUCTURE RESILIENCE

In order to assure the quality, finance ability and resilience of the Projects USTDA supports through project preparation grants, environment-related and geophysical risks to and vulnerabilities of projects must be considered at the project scoping stage for all feasibility studies (FS) and technical assistance (TA) activities. Categorical exclusions from this requirement for environmental and disaster resilience assessment include: Global Procurement Initiative activities, *de minimis* training grants, and International Business Partnership Programs (i.e. reverse trade missions, conferences, and workshops).

### What does USTDA mean by Infrastructure Resilience?

As a project planning agency, USTDA recognizes the importance of identifying risks and opportunities early on in the project scoping stage. Environment-related risks, such as drought, flood, high heat, and sea level rise, and other geophysical hazards (for example, earthquakes, tsunamis, volcanic eruptions, or landslides) are particularly relevant for the Projects USTDA supports, as these can threaten the integrity of infrastructure both acutely and over time if not properly accounted for. Through the environmental and disaster resilience assessment process, USTDA seeks to identify environment-related and other geophysical risks and vulnerabilities and incorporate environmental and disaster resilience considerations into the project preparation process. This requirement enhances the resilience of projects that are achieved from USTDA-funded activities, assists with obtaining project financing, and further promotes sustainable development over the lifetime of these investments.

An environmental and disaster resilience assessment looks at the impact of environmental and geophysical hazards on a potential Project and involves two phases: (1) Infrastructure Risk Screening and (2) the incorporation of environmental and disaster resilience considerations into the TOR to ensure potential adverse environment-related impacts and geophysical hazards are addressed in the Activity.

**The Infrastructure Risk Screening** identifies potential environment-related and geophysical risks, vulnerabilities, and opportunities pertaining to a program or investment, determines if additional analysis is required, and if so, helps to scope that analysis. In other words, it is intended to either identify what further study is required, determine that further analysis is not warranted, or determine that the environmental and geophysical risks are so high that the Project cannot move forward as planned. Screening should occur early enough in the development process (e.g., at the DM/DS stage) to influence the analysis and decisions that follow. For that reason, screening should be fairly high level and quick, broadly characterizing current and future environmental risks and geophysical hazards and their interaction with proposed investments. In some cases, screening may directly influence design.

How the Contractor incorporates environmental and disaster resilience considerations into the TOR will depend on the level of environmental and/or geophysical risk (see below for additional information).

### Elements of Effective Infrastructure Risk Screening

An Infrastructure Risk Screening should consider:

1) Current and projected environmental conditions and trends at proposed Project location(s). Based on existing information, the analysis should consider current environmental trends and future scenarios at the proposed Project location(s). The analysis should focus on those environmental parameters that are relevant for the specific Project under consideration. Environmental screening should consider vulnerabilities to extreme events as well as longer-term changes. Screening should consider current and projected future conditions, bearing in mind the expected timeframe and lifetime of the Project. Key parameters to be considered include:
   a) Temperature
   b) Precipitation and runoff (including implications for droughts, floods, water availability, water levels, soil moisture, fire risk, etc.)
   c) Wind and other storm-related threats
   d) Sea level rise and storm surge, and associated consequences (such as saline intrusion) for locations near coastal margins
   e) Ocean acidification (changes in pH) for Projects with marine or coastal linkages
   f) Any other environment-related factor that would be clearly salient to the Project.

2) Other geophysical hazards to which the site is prone. Based on existing information, the analysis should consider geophysical hazards that are possible at the proposed Project site(s). The analysis should focus on those geophysical hazards that are relevant for the specific Project under consideration. Key parameters to be considered include (as relevant):
   a) Earthquakes
   b) Tsunamis
   c) Volcanic eruptions
   d) Landslides
   e) Any other geophysical factor that would clearly be salient to the Project.

3) Potential impacts of environmental or the geophysical hazard(s) on the Project itself. Impacts from environment-related or other geophysical hazards depend on the nature of the Project, as well as the current and projected environmental conditions or geophysical hazards affecting the location of the Project or locations on which the Project depends (e.g., access routes, locations critical to supply chains).

Note that at this early stage in development, projects and their potential locations may not be well-defined, so the Contractor will need to use whatever information is available to them to conduct the screening.

Based on the results of the above analysis, the Contractor shall assign a risk rating for the Project. This rating is a qualitative measurement and shall be expressed as Low, Moderate or High risk.

The Contractor shall take into account the environmental and geophysical risks associated with the relevant geography and the likelihood that these risks will have an impact on the Project to consider:

1) The **probability** that there will be a negative environmental impact or other geophysical hazard in the relevant geography for the Project.
2) How **severe** a negative environmental impact or other potential event associated with a geophysical hazard is likely to be in the relevant geography and on the Project.

**How Should the TOR of the FS/TA Address Infrastructure Resilience?**

The level of environmental and/or geophysical risk will determine how the Contractor shall incorporate environmental and disaster resilience considerations into the TOR. Specifically:

| Risk Level | Definition | How to Reflect in TOR/Impact on Approval Process |
|---|---|---|
| **Low** | Negligible environmental/geophysical risk - There are no discernible material risks to the project due to environmental or other geophysical hazards. | Incorporate section into TOR that outlines potential environmental and/or geophysical risks that should be reviewed and highlighted to Grantee for consideration during implementation of Project. |
| **Moderate** | The effects of environmental or other geophysical hazards could adversely affect the use, technical performance, or lifetime of the infrastructure, or have detrimental effects on the financial performance of the asset (for example, by raising costs, requiring expensive maintenance, or reducing revenue or the likelihood of loan repayment). Future environmental conditions and geophysical risk should be considered in design standards for the project. | Incorporate section into TOR that outlines environmental and/or geophysical risks identified in Screening and provides instructions for further analysis of environmental and/or geophysical risks that would have long-term implications for the Project. Require Final Report provide recommendations for risk mitigation. |
| **High** | Environmental and/or geophysical risk could pose a significant threat to the performance, economic viability, lifetime or future usability of the project. | Either: 1) Consider not recommending the activity if the proposed Activity faces a high level of environmental and/or geophysical risk that cannot be mitigated;* OR 2) Include specific language within the TOR to: further assess environmental and geophysical risks for the Project; ensure identified risks are fully taken into consideration and that appropriate measures are incorporated to ensure resilience as part of any site selection, design, or other relevant components of the FS or TA; and make recommendations to the Grantee for any additional steps that should be taken to incorporate resilience considerations or otherwise mitigate the risk to the Project from the identified environment-related and/or geophysical hazards.** |

*In cases where the Infrastructure Risk Screening has indicated that a proposed Project has a high risk and should not move forward, meaning that:

1) The environmental and/or geophysical risk to the Project is so significant that:
    a. It renders the Project unattractive for financing; or
    b. The Project would be unlikely to provide development benefits that would justify the investment in the Project; or
    c. The environmental and/or geophysical risks and environmental and social impact of the Project would combine in a way that poses an unacceptably high environmental and social risk; and
2) These risks cannot be effectively mitigated,

the Contractor shall note this and provide an explanation in the final DM report prepared for USTDA.

In many cases, further analysis of environmental and disaster resilience considerations will be incorporated into the PESIA. For other activities, though, it may fit more naturally as a part of another task. In considering the placement of the resilience section of the TOR, it will be important to consider how the information will be used, and whether it will inform other tasks under the TOR.

** In cases where the Infrastructure Risk Screening has indicated that a proposed Project has a high environment-related and/or geophysical risk and the risk(s) can be mitigated, it will be important for the FS or TA to incorporate a thorough analysis of the risk(s) and detail how the recommendations in the FS or TA project report effectively mitigate those risks. This will be particularly important for Projects requiring significant capital expenditure or expecting to rely on international sources of finance.

**Attachment VIII - U.S. Companies Contacted During the Course of the Definitional Mission**

| | [redacted] |
|---|---|
| **1** | |
| **2** | |
| **3** | |
| **4** | |
| **5** | |
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| **13** | |
| **14** | |

Section E Instructions to Offerors
THE FOLLOWING ITEMS REPRESENT THE "PROPOSAL PACKAGE" THAT SHOULD BE RETURNED IN RESPONSE TO THIS SOLICITATION (Addendum to FAR 52.212-1, Instructions to Offerors – Commercial Items (NOV 2023).

**E.1. Offer Submission:**

Send your offer by email to contractproposals@ustda.gov which is **due no later than 1:00 PM, local Arlington, VA time on Wednesday, April 1, 2026.** Proposals submitted by facsimile or to alternate email addresses will NOT be accepted. Late

proposals will be processed in accordance with Federal Acquisition Regulation guidance.

**E.2. Questions Relating to This Solicitation:**

All questions must be emailed to the POC listed in the solicitation at cntractproposals@ustda.gov and tjohnson@ustda.gov no later than **1:00 p.m., Arlington, VA Time Wednesday, March 11, 2026. Please reference the Solicitation Number and Project Title in the SUBJECT LINE of your email.**

**E.3. Notice Regarding Suspension/Debarment/Ineligibility:**

Any contract awarded to a contractor who, at the time of award was suspended, debarred, and ineligible for receipt of contract with Government Agencies or in receipt of a notice of proposed debarment from any Government Agency, is voidable at the option of the Government.

**E.4. Inspection and Acceptance:**

All services are subject to COR's and/or ACOR's final approval. All work will be inspected and accepted at USTDA's Office, Arlington, VA.

**E.5. Instruction for Submission of Offer/Proposals Responses Shall Be Submitted in TWO Separate Volumes as Follows:**

**VOLUME I(a): TECHNICAL PROPOSAL:**

***No pricing information shall be included as part of the technical proposal. All pricing information shall be included in a separate volume***

**Technical proposal shall not exceed 10 pages in length. Any additional pages will not be evaluated.**

**(a)** Proposals will be evaluated strictly in accordance with its written content. Proposals that merely restate the requirement or state that the requirement will be met, without providing supporting rationale, are not sufficient. RFP respondents who fail to meet the minimum technical requirements of the solicitation will be rated as *Unacceptable* and will be ineligible for award.

**(b)** USTDA will evaluate the proposed staffing based on the quality and availability of resources to support the services identified in the Performance Work Statement (PWS). This will include the adequacy of proposed methodology and work plan.

**(c)** Offerors shall propose a clear rationale for the proposed methodology and work plan and describe how the requirement will be completed successfully. This may include a strategy for a staffing approach inclusive of level of effort, travel, timing, risk assessment, etc.

**(d)** The Offeror is encouraged to use specific examples, as applicable, to illustrate technical capabilities as it relates to the Performance Work Statement (PWS), as well as experience developing successful healthcare infrastructure sector projects.

**(e)** The Offeror shall provide examples and effectively demonstrate relevant experience and expertise: (1) providing sector-specific guidance; (2) developing Terms of Reference (TORs) for feasibility studies, technical assistance, and/or pilot projects; and (3) conducting technical, economic, and financial evaluation of sector projects.

**(f)** The Offeror's relevant experience developing Terms of Reference and budgets for feasibility studies and technical assistance, and experience with relevant financing mechanisms, shall also be evaluated.

**(g)** The Offeror shall provide examples supporting such experience and expertise. Proposals, which merely restate the requirements or state that the requirements will be met, without providing supporting rationale, are not sufficient. Offerors who fail to meet the minimum technical requirements of the solicitation will be rated Unacceptable and will be ineligible for award. The RFP respondent(s) shall confine submissions to essential matters, sufficient to define the proposal and provide an adequate basis for evaluation. RFP respondent(s) are responsible for including sufficient details, in a concise manner, to permit a complete and accurate evaluation of each proposal. **No material may be incorporated in the proposal by reference in order to circumvent the page limitation.** Please submit the technical proposal as a searchable PDF.

The following documents are **not** included in the page limitation:

a. **Cover Page**

b. **Table of Contents**

c. **Executive Summary:** Although this section will not be evaluated, if included, it should allow technical reviewers to quickly understand the critical elements of the proposal including the most salient features of the RFP respondents' technical vision and approach, the key personnel, and capabilities to accomplish the desired results. This section shall be limited to 1 page. Any additional pages will not be reviewed.

d. **Resume/Curriculum Vitae (CV):** Resumes/Curriculum Vitae (CVs) as part of the proposal, may not exceed 3 pages per person. Any additional pages shall not be reviewed.

e. **Past Performance Information:** Offerors shall submit a list of no more than three (3) most recent Government and/or commercial contracts in performance at any point during the three (3) years prior to the proposal submission date, which are relevant to the efforts required by this solicitation. A brief description of the effort, name of the Agency/organization the contract is/was with, contract period of performance, total contract value, point of contact for each submitted effort, and contact information (name and phone number/email) must also be provided. Past performance will be considered relevant if the contract demonstrates relevant experiences that are similar in size, scope, and complexity to the effort described in the solicitation. The Government reserves the right to obtain past performance information from any available source, to include the U.S. Government's Past Performance Information Retrieval System (PPIRS) and may contact customers other than those identified by the Offeror when evaluating past performance.

***Past Performance Questionnaire*** - The Offeror shall provide information for a maximum of three (3) contracts and/or subcontracts held within the last three (3) years. Also, ensure the attached Past Performance Questionnaire is forwarded by the Offeror to the contract POC for which the past performance reference is being provided. The government will use information submitted by the Offeror's past performance POC, such as other Federal Government offices and commercial sources, to assess performance. The

attached Past Performance Questionnaire MUST be completed by the POC providing the reference. Upon completion, the past performance POC should forward the completed questionnaire to USTDA via email to contractproposals@ustda.gov and vpringle@ustda.gov no later than **1 PM., Arlington, VA Time on Wednesday, April 1, 2026.**

**VOLUME II: PRICE**

**Price Proposal**:

(a) RFP respondents shall submit their price proposal using Standard Form (SF) 1449-Solicitation/Contract/Order for Commercial Items. Each RFP respondent should ensure the CAGE CODE and DUNS Numbers are placed in Block 17A and complete blocks 24 (with pricing information), 30A, 30B, and 30C.

(b) File name for the Price Proposal shall start with "Price" followed by Offeror's name, which shall not exceed 7 characters (e.g. Price ABCD).

(c) Offeror(s) shall complete and submit the Price Proposal spreadsheet workbook enclosed in this solicitation. RFP respondents shall submit a price proposal with breakdown in a Microsoft Excel Spreadsheet or the attached Price Proposal Spreadsheet complete with traceable formulas. The price proposal excel spreadsheet must be accompanied with narratives (to support the price proposal) in a word document.

**ALL PRICE NUMBERS SHALL BE ROUNDED UP (NO CENTS)**. There is no page limitation for the Price Proposal.

(d) Offeror may follow the USTDA's sample pricing spreadsheet or independently estimate theirs (accompanied with narratives) to include their total proposed mix of labor categories, labor rates (fully loaded), and labor days needed to meet all the requirements contained in the PWS.

**E.6. Evaluation Factors for Award:** FAR 52.212-2, Evaluation, Commercial Items (available at www.farsite.hill.af.mil under FAR), is being used. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s). The following non-price factors are of equal importance and will be used to evaluate all offers. As technical merit of the proposals becomes more equal, cost/price may become a determining factor.

**(1) TECHNICAL:** The following sub-factors are of equal importance:

**Sub-Factor 1: Relevant Technical and Professional Experience**
The Offeror's technical and professional experience in digital infrastructure and technical capabilities of proposed technical expert(s) as it relates to the Performance Work Statement (PWS). The Offeror is encouraged to use specific examples to illustrate technical capabilities as it relates to the Performance Work Statement (PWS).

**Sub-Factor 2: Technical Approach:** USTDA will evaluate the firm's technical approach, including, without limitation, products, and methods, to assess the degree of understanding of the work and feasibility of the solution proposed to complete each of the requirements of this solicitation, as it relates to the Performance Work Statement (PWS).

**Sub-Factor 3**: **Foreign Language Proficiency**: The Contractor is proficient in both Spanish and Portuguese languages at no less than the general professional proficiency level (Level 3 or above on the Interagency Language Roundtable scale). The resumes of the Contractor's proposed personnel shall indicate their respective Spanish and Portuguese language proficiency levels, as appropriate. If the Contractor does not meet preferred language proficiency criteria, the Contractor shall demonstrate ability to fully perform the work described in this PWS through the use of translation and interpretation services.

**(2) PAST PERFORMANCE** – The Government will evaluate relevant work of similar size, scope, and complexity performed in the last three (3) years.

**(3) PRICE:** The Government will evaluate price to determine the following--

- Completeness: All information required by the solicitation has been submitted and is accurate.
- Reasonableness: Price is fair and reasonable in accordance with FAR.

Price proposals found to **be unrealistically low** (an indication of "buy – in") will be ineligible for award. The evaluated price will be used in the tradeoff analysis between price and non-price factors to determine best value. No adjectival ratings will be used to evaluate Price.

**All evaluation factors, other than cost/price, when combined, are significantly more important than cost/price.**

**E.7. Evaluation Approach**

All proposals shall be subject to evaluation by Government personnel. The Government reserves the right to award without discussions based upon the initial evaluation of proposals. The proposals will be evaluated strictly in accordance with its written content. Proposals, which merely restate the requirement or state that the requirement will be met, without providing supporting rationale, are not sufficient. Offerors who fail to meet the minimum requirements of the solicitation will be rated Marginal or Unacceptable and may be ineligible for award.

**E.7.1. Technical Evaluation Approach:** The proposal will be evaluated to determine:
a) The extent to which it demonstrates a clear understanding of requirements presented in the solicitation.

b) The Offeror is encouraged to use specific examples to illustrate technical capabilities as it relates to the PWS.

c) The Offeror's demonstrated proficiency with the Spanish and Portuguese languages, at a minimum (Level 3 or above on the Interagency Language Roundtable scale). per Section D.1.5 of the PWS shall be evaluated.

d) The extent to which the proposed approach is workable and the end results achievable.

e) The level of confidence provided the Government with respect to the Offeror's methods and approach in successfully meeting and/or exceeding the requirements in a timely manner.

f) Whether the Offeror's methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in the solicitation. Technical factor and sub-factors shall be evaluated using the following adjectival ratings:

**Table 1. Technical Ratings**

**Rating Description**

Outstanding Proposal meets requirements and indicates an exceptional approach and understanding of the requirements. Strengths far outweigh any weaknesses. Risk of unsuccessful performance is very low.

Good Proposal meets requirements and indicates a thorough approach and understanding of the requirements. Proposal contains strengths which outweigh any weaknesses. Risk of unsuccessful performance is low.

Acceptable Proposal meets requirements and indicates an adequate approach and understanding of the requirements. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. Risk of unsuccessful performance is no worse than moderate.

Marginal Proposal does not clearly meet requirements and has not demonstrated an adequate approach and understanding of the requirements. The proposal has one or more weaknesses which are not offset by strengths. Risk of unsuccessful performance is high.

Unacceptable Proposal does not meet requirements and contains one or more deficiencies.

Proposal is un-awardable.

**E.7.2. Past Performance Evaluation Approach:** The Past Performance evaluation will assess the relative risks associated with an Offeror's likelihood of success in fulfilling the solicitation's requirements as indicated by that Offeror's record of past performance. In this context, "Offeror" refers to the proposed prime Contractor. The Government will conduct a performance risk assessment based on the quality, relevancy, and recency of the Offeror's past performance, as it relates to the probability of successful accomplishment of the required effort. The currency and relevance of the past performance information, source of the information, context of the data, and general trends in the Contractor's performance will be considered.

The Government reserves the right to obtain past performance information from any available source and may contact customers other than those identified by the Offeror when evaluating past performance. Because of the wide variety of past performance history of individual Offerors, the Government is not required to ensure that an equal number of references be obtained for each Offeror. Since the Government may not necessarily interview all of the sources provided by the Offerors, it is incumbent upon the Offerors to explain the relevance of the data provided. Offerors are reminded that the burden of proving low performance risk rests with the Offerors.

Offerors, it is incumbent upon the Offerors to explain the relevance of the data provided. Offerors are reminded that the burden of proving low performance risk rests with the Offerors.
In the case of an Offeror without a record of relevant and recent past performance or for whom information on past performance is not available, the Offeror may not be evaluated favorably or unfavorably on past performance.

Past Performance factor shall be evaluated using the following adjectival ratings:

**Table 2. Past Performance Confidence Assessments**

**Rating Description**

Substantial Confidence Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.

Satisfactory Confidence Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.

Limited Confidence Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.

No Confidence Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

Unknown Confidence (Neutral) No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned.

**E.7.3. Best Value Award Determination**

The Government will make an award to the RFP respondent whose proposal conforms to the PWS requirements and is determined, based on the evaluation factors, to represent the best value to the Government. The Government seeks to award to the RFP respondent who gives USTDA the greatest confidence that it will best meet or exceed the requirements affordably. This may result in an award to a higher rated, higher priced RFP respondent, where the decision is consistent with the evaluation factors and the Contracting Officer reasonably determines that the technical superiority of the higher priced RFP respondent merits the additional price.

The Government may award based on initial proposals received, without further discussions. Accordingly, each RFP respondent should submit their proposal to the Government using the most favorable terms from a technical and price standpoint. Pursuant to FAR Part 15.306(c), if discussions are held, the Contracting Officer shall establish a competitive range of the most highly rated proposals. If the number of most highly rated proposals exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range.

Only one award will result from this RFP. Proposals that do not address all requirements presented in the PWS may not be considered for award.

# Section IV: List of Documents, Exhibits, and other Attachments

None

# Section V: Solicitation Provisions

## Clauses incorporated by reference

None

## Clauses incorporated by full text

52.204-26 Covered Telecommunications Equipment or Services - Representation (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) ( https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) (1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)